

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202000542105CUWM: David Birch vs. City of Oxnard
06/30/2026 in Department 44
Petition for Writ

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Nature of Proceedings: Petitioner David Birch’s Petition for Further Mandamus

Tentative Ruling:

Petitioner David Birch’s Petition for Further Mandamus is DENIED.

I. Relevant Factual Background and Procedural History

After 33 years of employment by respondent, City of Oxnard (the City), petitioner David Birch (Birch) was terminated in 2019. (*Birch v. City of Oxnard* (Mar. 27, 2025, B330225, nonpub. opn., 2025 WL 923748, at *1 [hereinafter after *Birch*]¹.) In 2007, Birch became the chief water operator in the water division, a position in which he supervised five to seven employees. He remained in that position until his termination, though from 2010 to 2015, Birch was an interim water operations manager, a position in which he supervised about 40 employees. (*Ibid.*)

¹ Unless otherwise noted, the facts and procedural history are taken from the Court of Appeal’s non-published opinion in this case.

In 2018, a subordinate employee made a complaint about Birch, alleging he had engaged in inappropriate conduct. After an investigation by an outside law firm, the City served Birch with a notice of intent to terminate. (*Id.*) Birch was charged with seven alleged violations of the City's personnel rules and regulations, which are summarized in the unpublished opinion. (*Id.*) The first two incidents are relevant to this proceeding and are summarized in the Court of Appeal's unpublished opinion as follows:

(1) Birch held a supervisory position within the Water Department. On multiple occasions, he told coworkers a story about finding employee Laura Camacho's underwear left out in the restroom. He also told a story about encountering a male employee "Tino," who had his pants around his ankles when he used the urinal in the bathroom;

(2) Birch made inappropriate sexual remarks or comments towards his coworkers. On one occasion, he made a comment about wanting to get a car ride with one employee, Mike Love, because he "gives better blowjobs." Birch also regularly made inappropriate gay comments and jokes, including frequent references to employees looking at gay porn. On another occasion he made a comment regarding the "Man/Boy Love Association" or "MBLA[.]"

(*Id.*)

After a *Skelly* hearing, the City terminated Birch based on all seven incidents. (*Id.* at *2.) Birch appealed the termination to an arbitrator pursuant to the City's Memorandum of Understanding. After the hearing, the arbitrator issued an advisory opinion. The City's manager considered the opinion and upheld the termination. (*Id.* at *2.)

Birch petitioned the superior court for a writ of mandate pursuant to Code of Civil Procedure section 1094.5. The trial court at the time commented words to the effect of, "The punishment is too harsh" and refused to permit the City to be heard on the matter. In an order dated October 20, 2022 (the October 2022 Order), the trial court granted the petition, finding that only the first two of the incidents were supported by the evidence. With regard to the first incident, the trial court found that Birch mentioned the incidents regarding Camacho and Tino "at least into 2018." (*Id.* at *2.) With regard to the second finding, the trial court found that the "gay jokes" were made in the workplace with male coworkers. It also found that the "Man/Boy Love Association" references had been made "approximately nine years prior." The trial court found that the incidents violated chapter 18, section 18.1.2, subdivision (2), which states:

Employees shall treat the public and fellow employees with the utmost courtesy and should conduct themselves at all times in a polite, courteous, and professional manner that will reflect credit to themselves and the City.

(*Id.* at *2.) The trial court found that the incidents did not fall within the province of any other charged violation. Further, the trial court found that the evidence did not support incidents 3 through 7. The court remanded the matter to the City to reconsider the level of discipline to be imposed. (*Id.*)

On remand, the City affirmed the termination. The City's manager listed several factors, including "Birch's supervisory role, his training in sexual harassment policies, the evidence of

his misconduct, his denial of his misconduct with the investigator, the arbitrator's findings, his accountability, and recommendations from others to terminate Birch. The city manager mentioned incidents 3 through 7 in explaining his decision to affirm the termination.” (*Id.* at *3.)

In response to the City’s decision affirming his termination, Birch filed a “further motion for writ of mandate.” The trial court granted the writ, finding that the City had failed to reconsider the penalty limited to the findings made by the trial court and, instead, had improperly considered the facts and findings that the court had found to be unsubstantiated. The court “treated Birch's 60-day suspension request as an amendment to the original petition and ordered the City to reinstate Birch with back pay and benefits except for the 60-day suspension period.” (*Id.* at *3.) The City appealed this order (the May 2023 Order).

The Court of Appeal affirmed the trial court’s findings that incidents 3 through 7 were not substantiated. (*Id.* at *4 - *5.) With regard to the rules and regulations violated, the Court of Appeal found that Birch is subject to discipline under 12.1 based on several different grounds:

Based on our own independent review, we conclude Birch’s conduct under incidents 1 and 2 was subject to section 12.1, subdivisions (10) and (15). Section 12.1 provides several different grounds for discipline. Under subdivision (10), employees “may be disciplined for [¶] ... [¶] ... [d]iscourteous or disrespectful treatment of the public, other employees, or City officials.” And, under subdivision (15), an employee may be disciplined for a “[v]iolation of these Personnel Rules or any other rule, regulation, resolution, ordinance, or policy.” There is no dispute that incidents 1 and 2 violated section 18.1.2, subdivision (2), which mandates that employees shall treat fellow employees with the utmost courtesy and shall conduct themselves in a polite, courteous, and professional manner. Birch is therefore subject to discipline under section 12.1.

(*Id.* at *6.)

The Court of Appeal also held that Birch’s conduct with respect to incidents 1 and 2 violated chapter 18, section 18.1.2(7):

That section specifies that “[s]erious misconduct” includes “[t]he use of inappropriate, offensive and/or aggressive language or actions,” and “[a]ny other unacceptable behavior or conduct that common sense dictates is unprofessional or which may affect and/or reflect negatively on the City.” We conclude that the behaviors described in incidents 1 and 2 were inappropriate and unprofessional behavior that constitute “serious misconduct.”

(*Id.* at *6.)

On the other hand, the court held that Birch’s conduct did not violate the City’s anti-harassment policy as set forth in chapter 3, sections 3.3 and 3.3.1, on grounds that while Birch’s comments were inappropriate and offensive, the evidence did not show that “any employee was singled out or treated disparately because of their protected status,” their perceived status, or because they associated with someone with a protected status. (*Id.* at *6 - *7.)

Finally, the Court of Appeal held that the trial court's modification of the penalty was error, stating that the trial court's power was limited to vacating the penalty upon a finding of a manifest abuse of discretion. (*Id.* at P7.) The Court of Appeal also found that the City abused its discretion by considering factors other than those that were relevant to incidents 1 and 2. (*Id.* at p. 15.)

The Court of Appeal reversed the May 2023 Order imposing the 60-day suspension and reinstating Birch's employment with back pay and benefits. It directed the trial court on remand "to order the City to reconsider a penalty based only on the evidentiary findings as set forth in the October 20, 2022, order and consistent with this opinion." (*Id.* at *8.) The Court of Appeal further ordered the trial court on remand "to modify its October 20, 2022, order to include violations of section 12.1, subdivisions (10) and (15), and section 18.1.2, subdivisions (2) and (7)." It otherwise affirmed the October 2022 Order. (*Ibid.*)

Remittitur issued June 4, 2025.

In an order issued on June 30, 2025, this Court remanded the matter to the City, stating, in relevant part, as follows:

Pursuant to the opinion and judgment, the Court orders the City to reconsider the penalty based only on the evidentiary findings as set forth in the October 20, 2022 order and consistent with the appellate opinion filed March 27, 2025.

In addition, and in accordance with the appellate opinion, this Court modifies its October 22, 2022 order to include violations of section 12.1, subds. (10) & (15) and section 18.1.2, subds. (2) & (7). The appellate court otherwise affirmed the trial court's October 20, 2022 order.

(Minute of June 30, 2025.)

On February 3, 2026, the City's manager, Alexander Nguyen, notified Birch of the City's decision to terminate him. (Decl. of Steven A. Nguy in Support of Respondent City of Oxnard's Responding Brief ["Nguy Decl."], Exh. D.)

On February 20, 2026, this Court set a trial date of June 30, 2026, in this matter. On April 8, 2026, the Court entered an order on the parties' stipulation setting a briefing schedule. Birch's opening brief was filed pursuant to that schedule on May 1, 2026. The City's opposition was filed on June 1, 2026. Birch's reply was filed on June 10, 2026. Thus, the matter has been fully briefed.

II. The Parties' Arguments

Birch argues that the Court of Appeal agreed with Judge Bennett and found that the decision to terminate Birch's employment was an abuse of direction. (Op. Br. at 4:10-21.) Birch argues that because the City has had two chances to reconsider the penalty and continues to impose termination as a penalty, this Court should "put an end to this, issue a writ imposing an appropriate penalty, and order the City of Oxnard to provide Birch the pay and other benefits of employment he lost as a result of the Respondent's abuse of discretion." (*Id.* at 5:17-20.) Birch

suggests that a 60-day suspension is sufficient. In the alternative, Birch argues that the Court should remand the matter and order the City to impose a lesser penalty than termination. (*Id.* at 10:2-6.)

The City asserts in its opposition that it has followed the directives of the Court of Appeal and the trial court on remand, considering only the two specified incidents of misconduct. The City argues that “too severe” is not an appropriate ground that would support issuance of a writ of mandate. The standard of review prohibits the Court from substituting its own judgment for that of the City, and if reasonable minds can differ on the propriety of the disciplinary action, this Court must uphold the decision. The Court of Appeal described Birch’s conduct as serious misconduct, and the City’s rules permit termination for serious misconduct. Accordingly, the petition should be denied. (Resp. Br. at 2:2-28; 5:19 – 6:23.) The City also points out that Birch fails to address section 18.1.2, subdivision (6), in his brief. Additionally, the City disputes Birch’s assertion that the Court of Appeal found termination to be an abuse of discretion. The Court of Appeal found that the City abused its discretion in considering incidents 3 through 7, not in terminating Birch. (*Id.* at 7:24 – 8:22.)

Birch first responds that the October 2022 Order remanding the matter for the City to reconsider the level of discipline imposed necessarily reflected a determination that termination was an abuse of discretion under the facts found by the court. He further relies on the May 2023 Order, which expressly found that the City ignored the court’s findings by reimposing termination and thereby committed a manifest abuse of discretion. (Reply Br. at pp. 2:1-19.)

Birch further argues the City misreads the appellate disposition by treating termination as still available on remand. According to Birch, the trial court’s prior rulings must be construed as including an implied finding that termination was disproportionate, relying on the doctrine of implied findings and the presumption that judgments are correct. (*Id.* at 3:18 – 4:20.)

Third, Birch argues the Court of Appeal’s statement that a court may vacate, but not itself modify, an agency’s penalty upon finding a manifest abuse of discretion confirms that the prior remand rested on a determination that termination could not stand; the appellate court merely held that the trial court could not select the replacement penalty itself. (*Id.* at pp. 4:22 – 5:10.)

Finally, Petitioner invokes the maxim of jurisprudence set forth in Civil Code section 3532, arguing that remand would have been an idle act if the City had remained free to reimpose the identical penalty based on the reduced findings of misconduct. (*Id.* at 5:12-17.)

III. Legal Standard: Trial Court Review of Penalty Imposed By City

“[T]he propriety of a penalty imposed by an administrative agency is a matter vested in the discretion of the agency and its decision may not be disturbed unless there has been a manifest abuse of discretion.” (*Cadilla v. Board of Medical Examiners* (1972) 26 Cal.App.3d 961, 966; *Lake v. Civil Service Commission* (1975) 47 Cal.App.3d 224, 228 [“The propriety of a penalty imposed by an administrative agency is a matter vested in the discretion of the agency, and its decision may not be disturbed unless there has been a manifest abuse of discretion.”]). Factors considered in determining whether there was an abuse of discretion include the extent to which

the employee's conduct harmed or, if repeated, is likely to harm public service; the circumstances surrounding the misconduct; and the likelihood of its recurrence. (*Skelly v. State Personnel Bd.* (1975) 15 Cal.3d 194, 218.)

“Neither an appellate court nor a trial court is free to substitute its discretion for that of the administrative agency concerning the degree of punishment imposed.” (*Barber v. State Personnel Bd.* (1976) 18 Cal.3d 395, 404, citing *Nightingale v. State Personnel Bd.* (1972) 7 Cal.3d 507, 515.) This is the case even if “in the court's own evaluation of the circumstances the penalty appears to be too harsh.” (*Lake, supra*, 47 Cal.App.3d at p. 228.)

Where reasonable minds could differ over the appropriateness of an imposed penalty, there is no manifest abuse of discretion. (*Landau v. Superior Court* (1998) 81 Cal.App.4th 191, 218; *Lake, supra*, 47 Cal.App.3d at p. 228 [“The fact that reasonable minds may differ will fortify the conclusion that there was no abuse of discretion.”].)

The abuse of discretion standard applies to penalty review even where a court is required to exercise independent judgment on the evidence. (*Schmitt v. City of Rialto* (1985) 164 Cal.App.3d 494, 500; *Kazensky v. City of Merced* (1998) 65 Cal.App.4th 44, 53.)

IV. Application

Here, Judge Bennett reviewed the evidence and concluded that incidents numbers 1 and 2 were substantiated while incidents 3 through 7 were not. The Court of Appeal affirmed Judge Bennett's ruling in this regard and ordered the matter remanded for the City to reconsider the appropriate penalty consistent with the substantiated incidents. Accordingly, all that remains for the Court to decide now is whether the City manifestly abused its discretion in deciding the appropriate penalty, here, the City's decision to terminate Birch as set forth in the letter of termination dated February 3, 2026.

Birch principally argues that the prior trial-court orders and the appellate opinion already determined that termination was impermissible. The Court disagrees. The Court of Appeal expressly stated that the City abused its discretion because, in its first reconsideration, it relied on incidents 3 through 7 after the trial court had found those incidents to be unsubstantiated. The Court of Appeal expressly declined to opine on the propriety of termination and stated that the City remained “free to consider any appropriate penalties, so long as it is on grounds substantiated by the trial court.” (*Birch, supra*, at *7; see also Nguy Decl., ¶ 2 and Exh. A [pp. 15-16].) It then directed the trial court to order the City to reconsider the penalty based only on the evidentiary findings contained in the October 20, 2022, order and consistent with the appellate opinion. (*Id.* at * 8.)

That disposition cannot reasonably be read as categorically foreclosing termination. Had the Court of Appeal intended to prohibit termination, its direction that the City was “free” to consider “any appropriate penalties” would have little meaning. Nor does the doctrine of implied findings permit the Court to imply a limitation inconsistent with the Court of Appeal's express reasoning and disposition. (*Oakland Bulk & Oversized Terminal, LLC v. City of Oakland* (2025) 112 Cal.App.5th 519, 542.)

The prior May 2023 finding of manifest abuse does not compel a different result. That finding rested on the City's reliance upon unsubstantiated incidents and findings related to incidents 3 through 7. It did not establish that termination could never be imposed based solely on incidents 1 and 2. The Court agrees with the City that the defect identified in the prior decision was the basis upon which the City acted, not necessarily the ultimate penalty selected.

On the present remand, the City Manager's February 3, 2026, letter confines its analysis to the sustained incidents and the rule violations identified by the Court of Appeal. Those sustained findings include repeated workplace comments concerning a female employee's underwear and another employee's restroom habits; inappropriate sexual and homophobic remarks, including comments about employees giving one another oral sex and viewing gay pornography; and references to the "Man/Boy Love Association." (Nguy Decl., Exh. D.) The Court of Appeal held that this conduct violated Personnel Rules section 12.1, subdivisions (10) and (15), and section 18.1.2, subdivisions (2) and (7), and constituted "serious misconduct." Serious misconduct subject the City's employees "to immediate suspension or termination." (AR, Vol. I, Exh. 3 [Exh. 3 to Exh. 1 (ch. 18, sec. 18.1.2(6))]; see also Nguy Decl., Exh. C [same].)

The Court recognizes substantial mitigating considerations, including Birch's 33 years of service, the age of some of the conduct, the absence of evidence that coworkers formally complained about some remarks, and the arbitrator's stated preference for suspension and demotion. Those factors could reasonably support discipline less severe than termination. The Court also recognizes that Birch was a supervisor, that the conduct involved repeated degrading workplace remarks, and that the governing rules provide that serious misconduct may result in immediate suspension or termination. At best for Birch, reasonable minds could differ regarding the appropriate discipline. However, this also means that the City did not manifestly abuse its discretion in terminating Birch.

Petitioner's reliance on Civil Code section 3532 is also unpersuasive. The remand was not an idle act merely because the City ultimately selected the same penalty. On remand, the City was required to disregard the five unsubstantiated incidents, apply the rule violations identified by the Court of Appeal, and exercise its discretion on the legally permissible record. An agency does not necessarily abuse its discretion by reaching the same result after curing the defect that invalidated its earlier decision.

Finally, the Court lacks authority to impose the requested 60-day suspension, as the Court of Appeal made clear. The Court of Appeal vacated the trial court's imposition of a penalty and stating that reviewing court is limited to vacating an agency's penalty upon finding a manifest abuse of discretion rather than substituting its own penalty. Because no manifest abuse is shown on the present record, there is no basis to remand with instructions for the City to impose discipline less severe than termination.

V. Disposition

For the reasons stated herein, the request for further mandamus is DENIED. The February 3, 2026 decision imposing termination remains undisturbed.

Counsel for the City of Oxnard is to give notice of the Court's ruling and to prepare, serve, and file a proposed judgment for the Court's consideration.